

Andhra Pradesh Scheduled Castes, Scheduled Tribes and Backward Classes - Issue of Community, Nativity and Date of Birth Certificates Rules, 1997

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State of Andhra Pradesh - Act

Andhra Pradesh Scheduled Castes, Scheduled Tribes and Backward Classes - Issue of Community, Nativity and Date of Birth Certificates Rules, 1997

ANDHRA PRADESH

India

Andhra Pradesh Scheduled Castes, Scheduled Tribes and Backward Classes - Issue of Community, Nativity and Date of Birth Certificates Rules, 1997

Rule

ANDHRA-PRADESH-SCHEDULED-CASTES-SCHEDULED-TRIBES-AND-BACKWARD-CLASSES-ISSUE-OF-COMMUNITY-NATIVITY-AND-DATE-OF-BIRTH-CERTIFICATES-RULES-1997 of 1997

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Andhra Pradesh Scheduled Castes, Scheduled Tribes and Backward Classes - Issue of Community, Nativity and Date of Birth Certificates Rules, 1997

Published vide Notification G.O.Ms.No. 58, Social Welfare (J2), dated 12-5-1997

Last Updated 23rd October, 2019

G.O.Ms.No. 58. - In exercise of the powers conferred by sub-section (1) of Section 20 of the Andhra Pradesh (Scheduled Castes, Scheduled Tribes and Backward Classes) Regulation of Issue of Community Certificates Act, 1993 (Act 16 of 1993), the Governor of Andhra Pradesh hereby appoints 16-5-1997 as the date on which the provisions of the Andhra Pradesh (Scheduled Castes, Scheduled Tribes and Backward Classes) Issue of Community, Nativity and Date of Birth Certificates Rules, 1997, shall come into force in all the areas of the State of Andhra Pradesh.

1.

Short title and commencement of Rules.

- These rules may be called the Andhra Pradesh (Scheduled Castes, Scheduled Tribes & Backward Classes) Issue of Community, Nativity and Date of Birth Certificates Rules, 1997.

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Form" means a form appended to these rules.

(b)

"Act" means the Andhra Pradesh (Scheduled Castes, Scheduled Tribes and Backward Classes) Regulation of Issue of Community Certificates Act, 1993 (Act No. 16 of 1993).

(c)

"Competent Authority" means the authority specified under column (2) of Annexure I appended to, these rules, for issue of certificates to the communities specified in column (1) within the territorial jurisdiction as specified in column (3) thereof.

(d)

"Traditional Habitat" of a tribe means the area in which a tribe or part or group of that tribe is found inhabiting traditionally, on the date of notification of that tribe or part or group of that tribe as a Scheduled tribe for the first time in the State of Andhra Pradesh.

3.

Community, Nativity and Date of Birth Certificates.

- The form for issue of Community, Nativity and Date of Birth Certificates is as specified in Form II appended to these Rules.

4.

Procedure for Application.

(a)

Every applicant/parent/guardian who belongs to a Scheduled Caste, Scheduled Tribe, Backward Class, desirous of declaring his social status as that of a Scheduled Caste, Scheduled Tribe or a Backward Class, shall submit an application in the prescribed Form I/II to Competent Authority, well in advance i.e. six months, as far as possible, particularly when seeking admission to the educational institutions or appointment to a post.

(b)

If the applicant is a minor, the parent/guardian shall submit the application form as mentioned in clause (a) above.

5.

Procedure for Verification.

(a)

On receipt of the application, the Competent Authority or any officer authorised by him in this regard shall ensure that the applicant has furnished complete information in all the columns of Form I/II and; shall then give the acknowledgement slip as appended to Form I/II, in token of having received the application. The Competent Authority shall then verify the information/documents/ evidence furnished by the applicant/parent/guardian in Form I/II. If the Competent Authority is satisfied with the correctness of the information/documents/evidence furnished by the applicant/parent/ guardian, he shall issue the Community, Nativity and Date of Birth Certificates in Form III within 30 (thirty) days of the receipt of the application in Form I/II. The Competent Authority shall specify in Form III the sub-caste of the SC claimant and the sub-tribe/sub-group of the ST claimant as listed out in Annexure I appended to these Rules.

(b)

If the Competent Authority feels that further enquiry is necessary, he shall then examine the school records, birth registration certificate, if any, and also examine the parent/guardian or applicant, in relation to his/her/their community. He may examine any other person who has the knowledge of the social status of the applicant/parent/guardian, as the case may be. He shall take into account, in the case of Scheduled Tribes, their anthropological and ethnological traits, deity, rituals, customs, mode of marriage, death ceremonies/method of burial of dead bodies etc., before issuing the Community, Nativity and Date of Birth Certificates. The Competent Authority shall have power to call for further information and/or collect such evidence/document and also conduct such enquiry as specified in the Form IV, if deemed necessary. Notice in Form IV should be issued to the parent/guardian, in case the applicant is a minor, to appear before the Competent Authority.

(c)

The notice as specified in Form IV should give clear 15 (fifteen) days, from the date of the receipt of the notice by the parent/ applicant/guardian, to attend the enquiry. In no case, not more than 30 (thirty) days from the date of the receipt of the notice, should be allowed.

(d)

Where the person on whom a notice in Form IV is served by the Competent Authority fails to respond on the date mentioned therein, the Competent Authority may reject or confirm the claim of the person based on the document/evidence available with the Competent Authority (furnished while applying in Form I/II). He may also take into account any other material/evidence/documents gathered by him in that particular case. The Competent Authority shall cause enquiry, following due process of law, to verify the genuineness or otherwise of the information/evidence/documents furnished or recorded, from such persons as called for in the enquiry specified in Form IV. He may also cause to collect any other documentary or related evidence about the genuineness or otherwise of the information furnished by the persons called for in the enquiry.

(e)

The Competent Authority should give reasonable opportunity to the applicant/parent/guardian to produce evidence in support of their claim. A public notice by the beat of drum or any other convenient mode may be published in the village or locality to which the applicant/parent/guardian belongs. If any person or association opposes such a claim, opportunity to produce the evidence in person before the Competent Authority may be given to him or her. After giving such an opportunity to that person or association the Competent Authority may make such enquiry as it deems expedient and consider claims of the applicant/guardian/parent vis-a-vis the objections raised by his/her/their opponent.

(f)

The Competent Authority shall requisition the services of Mandal Revenue Inspector, Village Development Officer, Village Administrative Officer or such other persons as deemed necessary, to assist him in the enquiry to verify the veracity or otherwise of the community claims made by the applicant/parent/guardian. However the responsibility for issue or rejection of the claim shall rest on the Competent Authority only.

(g)

In respect of the tribal communities who are not "traditional inhabitants" of the area of territorial jurisdiction of the "Competent Authority", as specified in column 3 of Annexure I appended to these Rules, the Competent Authority shall make a reference to the District Tribunal Welfare Officer concerned to provide such professional assistance as available with him or with the Tribal Cultural Research Institute, Hyderabad, to confirm or reject the claim of the applicant.

(h)

The Competent Authority shall confirm or reject the claim for the Community, Nativity and Date of Birth Certificate, after conducting the enquiry as mentioned in the paras above, within a period not exceeding 60 (sixty) days from the date of receipt of the application by him in Form I/II.

(i)

The Competent Authority in the cases of doubtful claims, shall refer the matter to the Chairman of the Scrutiny Committee formed at the District level under Rule 8 i.e. Joint Collector of the District, for the recommendations of the Committee, with regard to the issue of the Community, Nativity and Date of Birth Certificate as applied for by the applicant. On receipt of the recommendations of the Scrutiny Committee, the Competent Authority shall accordingly confirm or reject the claims of the applicants.

6.

Burden of Proof.

- It is the responsibility of the applicant to produce necessary evidence/documents while applying in Form I/II to the Competent Authority and also as called for by the Competent Authority/ Scrutiny and Review Committee at the State level/District Collector/Scrutiny Committees at the District level/Government, from time to time, while enquiring into the claims for the issue of Community, Nativity and Date of Birth Certificate.

7.

Scrutiny and Review Committee (State level).

- A Scrutiny and Review Committee shall be constituted at the State Level with the following officers:

(a) (1)

Principal Secretary to Government Social Welfare Department

-Chairman

(2)

Commissioner, Social Welfare

-Member

(3)

Commissioner, Tribal Welfare

-Member

(4)

Commissioner, Welfare of Backward Classes

-Member

(5)

Inspector General of Police C.B.C.I.D. (P.C.R. & Vigilance Cell)

-Member

(6)

Additional Secretary/Joint Secretary/Deputy Secretary to Government, Social Welfare Department

-Member(Convener)

(b)

This Scrutiny and Review Committee shall meet once in three months or as often, depending on the necessity.

(c)

Presence of three members will form the required quorum for the meeting of the Committee.

(d)

This Committee shall review and monitor the functioning of the scrutiny committees at the District level constituted under Rule 8. It shall render necessary advice to the Government on various policy decisions to be taken for streamlining the procedure or on any other issues related to the issuing of Community Certificates as per Act.

(e)

The Committee may also render necessary guidance and advice to the Government on cases referred to it, where divergent and conflicting enquiry reports are received by the Government, in respect of the community claims.

8.

Scrutiny Committee (District level):

(a)

In every District, a Scrutiny Committee shall be constituted with the following officers:-

(1)

Joint Collector

-Chairman

(2)

District Revenue Officer

-Member(Convener)

(3)

Deputy Director (Social Welfare)

Deputy Director (Tribal

Welfare)/District Tribal Welfare Officer

Deputy Director (Backward Classes Welfare)/District Backward
Classes Welfare Officer

-Member

-Member

-Member

(4)

Officer of the Research Organisation in the Commissionerate of
SW/TW nominated by the concerned Heads of the Departments

-Member

(5)

Officer representing the PCR/Vigilance Cell in the District

-Member

(b)

The Scrutiny Committee shall meet atleast once in a month or as often, depending on the cases referred to it.

(c)

Presence of three members will form the required quorum for the meetings of the Committee.

(d)

(1) The Scrutiny Committee, on receipt of the cases referred to it by the Competent authority under Rule 5(i), shall conduct enquiry regarding the doubtful claims, by giving notice in Form V to the applicant, within the period specified in the notice. This period should not be less than 15 (fifteen) days from the date of service of the notice on the applicant and in no case, on request, more than 30 (thirty) days should be allowed. This notice shall be served on the applicant through the Competent Authority who referred the case to the Committee.

(2)

The notice referred to in Form V shall be served on the parent/ guardian in case the applicant is a minor.

(3)

Where the person on whom a notice in Form V is served by the Scrutiny Committee fails to respond on the date mentioned in the notice, the Scrutiny Committee may finalise its recommendations based on the material/documents/evidence made available to the Committee by the Competent Authority.

(4)

The Scrutiny Committee shall cause enquiry, following the due process of law to verify the genuineness or otherwise of the information furnished or recorded from such persons as called in the enquiry as per Form V. It shall also cause to collect documentary evidence or any other related evidence about the correctness or otherwise of the information furnished or objections raised by any person during the enquiry.

(5)

The Scrutiny Committee shall examine the school records, birth registration certificates, if any, furnished by the persons during the enquiry. It may also examine any other person who may have knowledge of the community of the applicant. With reference to the claims of Scheduled Tribes, it may examine the anthropological and ethnological traits, deity, rituals, customs, mode of marriage, death ceremonies/method of burial of dead bodies etc., of that particular tribe, to finalise its recommendations to the Competent Authority.

(6)

The Scrutiny Committee should give reasonable opportunity to the applicant to produce evidence in support of their claim. A public notice by the beat of drum or any other convenient mode, may be published in the village or locality of the applicant and if any person or association, opposes such a claim, opportunity to produce evidence in person before the Committee may be given to him or her. After giving such an opportunity to that person, the Committee may make such enquiry as it deems expedient and finalise its recommendations, with brief reasons in support thereof, to the Competent Authority.

(7)

The Scrutiny Committee shall examine the report of enquiry conducted by the Revenue Department furnished to it by the Competent Authority. It may also obtain expert opinion from the Commissionerate of Social Welfare/Tribal Welfare through the officers of the Research Organisations of these Commissionerates who are the members of the Scrutiny

Committee, if deemed necessary. These enquiry reports may be compared and then recommendations of the Scrutiny Committee may be finalised as to whether the community claim of that applicant is found to be false or genuine.

(e)

The Chairman of the Scrutiny Committee i.e., Joint Collector of the District, shall send the recommendations of the Committee to the Competent Authority stating clearly whether the community claim of the person in question or his or her children, is genuine or false with reasons thereof, within 45 days from the date of the receipt of the case referred to it by the Competent Authority.

9.

Fraudulent claims.

(1)

Where the District Collector receives a written complaint from any person or has otherwise reason to believe that a person not belonging to Scheduled Caste or Scheduled Tribe or Backward Class has obtained a false Community, Nativity and Date of Birth Certificate to the effect that either himself/herself/or his/her children belong to such a Scheduled Caste/Scheduled Tribe/Backward Class, the District Collector shall refer the case to the Chairman, Scrutiny Committee i.e., Joint Collector of the District (formed under Rule 8, to enquire into such cases and send its findings to the District Collector.

(2)

The Scrutiny Committee on receipt of such cases referred to it by the District Collector, shall follow the procedure as listed in Rule 8(d), (1) to (7) except that it shall serve the notice in Form VI on the person involved in the case.

(3)

The Scrutiny Committee shall in such cases cause enquiry by the protection of Civil Rights/Vigilance Cell also i.e. through the officer representing the Protection of Civil Rights/Vigilance Cell as the member of the Committee. The protection of Civil Rights/Vigilance Cell should investigate the social status claimed by the person by sending the Inspector of Police to the local place of residence of that person and where he/she usually resides or in case of migration, to the town or city from which he/she originally hailed from. The Inspector should personally verify and collect all the facts, about the community claim of the person or the guardian or the parent, as the case may be.

(4)

Where the person on whom a notice served in Form VI fails to respond to the notice within the period specified in the notice, the Scrutiny Committee may finalise its findings based on the material made available by the District Collector i.e., enquiry report of the Revenue Department, enquiry report of the Protection of Civil Rights/Vigilance cell and the reports of the expert/Officer of the Research Organisation of the Commissionerate of Social Welfare/Tribal Welfare.

(5)

The Scrutiny Committee shall compare the enquiry reports of the Revenue Department furnished by the District Collector, the reports of the Protection of Civil Rights/Vigilance Cell and the reports of the Expert or officer of the Research Organisation of the Commissionerate of Social Welfare/Tribal Welfare and then finalise its findings whether the Community, Nativity and Date of Birth Certificate given to the person or his/her children is genuine or otherwise.

(6)

The Scrutiny Committee shall furnish its findings to the District Collector within 60 days from the date of the receipt of the reference from the District Collector.

(7)

The District Collector shall then decide whether the certificate holder is genuine or fraudulent and in case of his having obtained a Community, Nativity and Date of Birth Certificate fraudulently, the District Collector shall pass an order cancelling the certificate issued, within one month from the date of receipt of the findings of the Scrutiny Committee and shall issue notification to that effect, to be published in the District Gazette. The District Collector shall also take necessary steps to initiate action against the Competent Authority who issued the Community, Nativity and Date of Birth Certificate to the wrong person, besides taking other specified in Rule 15. He shall communicate the cancellation of the certificate to the educational institution/ employer/appointing authority as the case may be forthwith.

(8)

In respect of the Bariki SC Community, such written complaints if received by the Collector shall be referred by him to the Government, for necessary enquiry and final action to cancel the certificate, since the District Collector is the Competent Authority to issue the Community, Nativity and Date of Birth Certificate for this community.

(9)

The Collector or Government, either suo motu or on a written complaint by any person or on request by an employer/educational institution/ appointing authority, shall enquire into the correctness of any Community, Nativity and Date of Birth Certificate already issued and if it is found that the certificate is obtained fraudulently, then the District Collector or the Government, as the case may be, shall cancel the certificate as per Section 5 of the Act.

(10)

[In respect of Tribals, [the Commissioner of Tribal Welfare/Director of Tribal Welfare]

[Added by Notification No. G.O.Ms. No. 79, dated 24.7.2002.]

, either suo motu or on a written complaint by any person or on request made by an employer/educational Institution/appointing authority, shall enquire into the correctness of any community, nativity and date of birth certificate already issued and if it is found that the said certificate is obtained fraudulently, shall refer the case to concerned Collector or the Government for its cancellation as per the procedure laid down Section 5 of the Act.]

10.

Appeals.

- An appeal shall lie to the District Collector within thirty (30) days from the date of receipt of rejection orders on the application for Community, Nativity and Date of Birth Certificate passed by the Competent Authority. The Appellate Authority shall examine the grounds on which the appeal is filed and also receive or call for further evidence/documents if considered necessary, and pass such orders as the Appellate Authority considers fit and proper in the matter. In case of Bariki Caste, the appeal shall lie to the Government against the orders of the District Collector.

11.

Review.

(1)

The Government may, on an application filed by any person aggrieved by an order passed by the District Collector under sub-section (1) of Section 5 of the Act, within 30 (thirty) days of receipt of that order, review such order if it was passed by the District Collector under any mistake, whether of fact or law or in ignorance of any material fact.

(2)

Pending disposal of an appeal under Rule 10 or a review under Rule 11(1) above, it shall be competent for the Government to stay the operation of the order against which an appeal or review, as the case may be, is filed.

12.

Revision.

(1)

The Government either suo motu, or on an application filed by any person aggrieved by the orders issued by the authority authorised under these rules, shall entertain such application as a revision petition, within sixty (60) days of the communication of the order passed under these Rules and pass appropriate orders in accordance with the provisions contained in Section 8 of the Act 16 of 1993.

13.

Bar of Jurisdiction of Civil Courts.

- No Civil Court shall have jurisdiction in respect of any order passed by any officer or authority under the Act and no stay or injunction shall be granted by a Court, in respect of any action taken or to be taken by such officer or authority under the Act, in pursuance of any power conferred by or under the Act, as provided in Section 17 of the Act.

14.

Exercising or Powers of Civil Courts.

- The Competent Authority/the Appellate Authority/the Scrutiny and Review Committee at the State level/Scrutiny Committees at the District/level Government shall exercise the powers of Civil Courts under the Code of Civil Procedure, 1908 in summoning the witnesses as defined in Section 9 of the Act in addition to-

(a)

Receiving evidence on affidavit;

(b)

Summoning and examining any person or documents;

(c)

Making local enquiry and inspections.

15.

Action on false certificates (Penalties).

(a)

Any person, who obtains a false Community, Nativity and Date of Birth Certificate as belonging to a community to which he does not in fact belong, shall be dealt with as per the provisions under Sections 10,11,12 of the Act.

(b)

Action under sub-rule (a) above against a person shall be referred to the Court of competent jurisdiction and will be initiated by the District Collector under whose jurisdiction the person obtained the false Community, Nativity and Date of Birth Certificate.

(c)

The District Collector shall initiate action under Section 13 of the Act against an officer who issued the false Community, Nativity and Date of Birth Certificate to any person contrary to the provisions of the Act.

16.

Validity of Community, Nativity and Date of Birth Certificate.

- The Community, Nativity and Date of Birth Certificate, issued by the Competent Authority in accordance with these provisions, shall be a permanent one.

17.

Procedure for issuing of duplicate Community, Nativity and Date of Birth Certificate.

- When the holder of the Community Certificate loses the Certificate he/she shall immediately report this to the Competent Authority. He/she shall submit an application to the Competent Authority, furnishing the particulars of the original Community Certificate held by him/ her. On receipt of such application, the Competent Authority shall verify his records and issue duplicate Community, Nativity and Date of Birth Certificates within fifteen (15) days of the receipt of the application by him/her. An affidavit on Rs. 10/- stamp paper stating the circumstances in which he/she lost the original certificate must be filed along with the application for the issue of the duplicate certificate.

18.

Complaints.

- Whenever complaints are received regarding the community claim of any employee/prospective employee/student claiming to belong to a Scheduled Caste/Scheduled Tribe or Backward Class, the appointing authority/employer/educational institution must refer the case only to the District Collector of the District from where the Competent Authority had issued the certificate. The District Collector shall in turn get, it verified by the Scrutiny Committee constituted at the District level as per Rule 8. The District Collector would inform the final action to the appointing authority/ employer/educational institution within a period of 90 (ninety) days, from the date of receipt of the complaint by him/her from the appointing authority/ employer educational institution.

19.

Provisional admission/appointment.

- If the last date for admission to an educational institution/appointment to an office/post is getting expired, and there is delay in finalising the enquiry and issuing of Community, Nativity and Date of Birth Certificate by the Competent Authority then the Competent Authority may inform the Principal of the Educational Institution/ appointing authority/employer or such other authority, competent in this behalf, to admit/appoint the candidate, on the basis of the declaration given by the candidate/parent/guardian before the Competent Authority, while applying in Form I/II as per Rule 5, for the issuance of the Community, Nativity and Date of Birth Certificate. Such admission or appointment shall only be provisional and valid for three months from the date of the communication by the Competent Authority to the Principal/employer/appointing authority as the case may be, and shall cease to be valid after the issuance of the community, Nativity and Date of Birth Certificate by the Competent Authority, based on the conclusion of the enquiry.

20.

Repeal.

- All the executive instructions, Government orders, Government Memoranda issued and are in force before the commencement of these Rules, shall stand annulled, without prejudice to the validity of anything previously done under those Government Orders/Memoranda or executive instructions.

21.

Savings.

- The Community Certificate issued by the Competent Authority prior to the commencement of these Rules should be treated as a valid certificate.

Annexure I

Government hereby notify that the authorities mentioned below in column (2) of the table within their territorial jurisdiction as "Competent Authorities" for issue of Community, Nativity and Date of Birth Certificate declaring the persons as belonging either to Scheduled Caste/Scheduled Tribe as per notification of the Government of India and to Backward Classes in accordance with the notification of the Government of Andhra Pradesh issued from time to time.

Column 1Specified Community

Column 2Competent

Column 3Jurisdiction

Authorities

(1)

(2)

(3)

1. BC Group:-A/B/C/D.All communities referred by the Government of Andhra Pradesh belonging to Backward Class, A/B/C/D Groups.

All M.R.Os in the State not below the rank of a Dy. Tahsildar.

Within the territorial Jurisdiction of a Mandal.

2. Scheduled Caste:

1.

Adi Andhra2. Adi Dravida3. Arundhatiya4. Dom, Dombara, Paidi, Pano5. Madiga6. Mala7. Mala Dasari8. Mala Dasu9. Mala Sale, Netkani10. Manne11. Panchama, Pariah12. Relli

All M.R.Os. in the State not below the rank of Dy. Tahsildar

Within the territorial Jurisdiction of a Mandal.

3. Scheduled Caste:

1.

Anamuk2. Aray Mala3. Arwa Mala4. Bavuri[5.

Beda jangam, Budaga Jangam]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

[6. Bindla]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

7. Byagara8.

Chachati9. Chalavadi10. Chamiar, Mochi, Muchi11.

Chambhar12. Chandala[13. Dakkal Dokkalwar]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

14.

Dandasi15. Dhor16. Ellamalawar, Yellammalawandlu17.

Ghasi, Haddi, Relli Chachandi18. Godagali19. Godari[20.

Gosangi]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

21. Holeyaa22. Holeyaa Dasari23. Jaggali24.

Jambuvulu25. Kolupulvandlu26. Madasi Kuruva, Madari

Kuruva27. Madiga Dasu, Mashteen28. Mahar29. Mala

Hannai30. Mala Jangam31. Mala Mashti32. Mala

Sanyasi33. Mang34. Mang Garodi[35. Mashti]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

36.

Matangi37. Mehtar38. Mitha Ayyalvar39. Mundala40.

Paky, Moti, thoti41. Pambada, Pambanda42. Pamidi43.

Samagara44. Samban45. Sapru[46. Sindhollu, Chindollu]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

[All Tahsildars in the State not below the rank of Deputy Tahsildars]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

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[with in the Territorial Jurisdiction of a Mandal]

[Substituted by Notification No. G.O.Ms. 84, dated 6.5.2008 (w.e.f. 12.5.1997).]

4. Scheduled Caste Bariki

Scheduled Tribe Community:1.

Andh2. Bagata3. Bhil4. Chenchu, Chanchuwar5.

Gadabas6. Gond, Naikpod, Rajgond7. Jatapus8.

Kattunkayakan9. Kolam, Manner varlu10. Kondhs, Kodi,

Kondhu, Desaya, Dongria Kondhs, Kuttiya Kondhs, Tikiria Kondhs,

Yenity Kondhs.11. Koya, Goud, Rajah, Rasha Koya, Lingadhari

Koya (ordinary), Kottu Koya, Bhine Koya, Raj Koya.12. Malis

(excluding Adilabad, Hyderabad, Karimnagar, Medak, Khammam,

Mahabubnagar, Nalgonda, Nizamabad and Warangal Districts.)13.

Mukha Dhora, Nooka Dhora14. Pardhan15. Porja,

Parangiperja16. Rona, Rena17. Savaras, Kapu Savaras,

Maliya Savaras, Khutto Savaras.18. Sugalis, Lambadis19.

Kulia20. Yenadis21. Yerukulas

District

Collector

All M.R.O.s in the State not below

the rank of Dy. Tahsildar.

Within the

territorial jurisdiction of a District.

Within the territorial

jurisdiction of a Mandal.

5. Scheduled Tribe Community:

1. Konda Kapus2. Kondareddys3. Hill Reddys4. Goudu

(in the Agency Tracts)5. Kammara6. Kotia, Benthoo, Oriya,

Bartika, Dhulia, Dulia, Holva, Pakio, Putiya, Sanrona,

Sidhopaiko7. Reddi Dhoras8. Konda Dhoras9. Thoti (in

Adilabad, Hyderabad, Karimnagar, Medak, Khammam, Mahaboobnagar,

Nalgonda, Nizamabad and Warangal Districts.)10. Nayaks (in

the Agency Tracts)11. Valmiki (in the Agency Tracts)12.

Manna Dhora

All Revenue Officers not below the

rank of a R.D.O./Sub-Collector or Asst. Collector in the State.

Territorial jurisdiction of a

Revenue Division held by RDO/Sub-Collector/Asst. Collector.

Annexure-II

Details of Forms:

Form I : Application for issue of Community, Nativity and Date of Birth Certificate for Scheduled Tribes.

Form II : Application for issue of Community, Nativity and Date of Birth Certificate to Scheduled Castes and Backward

Classes.

Form III : Form for Community, Nativity and Date of Birth Certificate.

Form IV : Notices to the applicant for verification issued by the Competent Authority.

Form V : Notices to the applicant for verification issued by the District Level Scrutiny Committee (Doubtful claims).

Form VI : Notices to the applicant for verification issued by the District Level Scrutiny Committee (Fraudulent Claims).

Form -I (Rule 5)

Form of Application for issue of Community, Nativity and Date of Birth Certificate relating to Scheduled Tribe under Section 3(1) and 3(2) of the Act 16 of 1993

(Information to be furnished by the applicant himself supported by the documentary evidence)

To

The Mandal Revenue Officer/

Revenue Divisional Officer/

Sub-Collector/Asst. Collector,

-----Mandal/Division,

-----District.

Sir,

I am in need of a Scheduled Tribe community certificate for me/for my son/daughter for which the details are given below:

1. Name of the applicant in full (in block letters):

2. Sex of the applicant:

3. (a) Father's name:

(b)

Mother's name:

4. Present postal Address:

5. Place of permanent residence of the certificate seeker/his father/paternal grand father, as on the date of the first notification declaring the community as a Scheduled Tribe, to which the certificate seeker claims to belong.

6. Age, date of birth and place of birth (if date is not known approximate year of birth)

7. Place of ordinary residence (documents relating to house/land or other immovable property or birth registration certificate or ration card or school records may be furnished)

8. If the applicant has been issued a community certificate in the past by any authority, a copy of such certificate should be furnished.

9. Community for which certificate is claimed (including sub-tribe or sub-group)

10. (a) Community of the father (including sub-tribe or sub-group)

(b)

Community of the mother (including sub-tribe or sub-group)

11. Whether the applicant is

(a)

a natural born son or daughter of his/ her parents.

or

(b)

adopted son/daughter of his/her parents.

Declaration

I/We declare that the information furnished by me/us in the application is true and correct, and the documents appended thereto are genuine and the contents of the documents are true and correct and that if these are found to be untrue and incorrect. I/We will be liable for prosecution for furnishing false and incorrect information/documents under Section 10 of the Act No. 16 of 1993.

Station:

Date:

Signature of the Applicant.

Signature of the Parent/Guardian.

Acknowledgment Slip

Received an application for issue of Community, Nativity and Date of Birth Certificates relating to Scheduled Tribe in Form 1, from (name of the applicant/parent/guardian) belonging to Village/Town Mandal District on (date).

Name of the Officer

Date:

Signature of the Officer authorised by the Competent Authority

(Name in capital letters) and designation, (affix seal)

Form II

Form of application for issue of community, nativity and date of birth certificates relating to Scheduled Caste/Backward Class under Section 3(1) of Act 16 of 1993

(Information to be furnished by the applicant himself supported by documentary evidence)

To

The Mandal Revenue Officer/

Revenue Divisional Officer/

Sub-Collector/Assistant Collector/

District Collector,

-----Mandal/Division,

-----District.

Sir,

I am in need of a Scheduled Caste/Backward Class Community Certificate for me/for my son/daughter for which the details are given below:

1. Name of the applicant in full (in block letters):
2. Sex of the applicant:
3. (a) Father's name: (b) Mother's name:
4. Present postal Address:
5. Permanent place to residence:
6. Age, date of birth and place of birth (If date is not known, approximate year of birth).
7. Place of ordinary residence (documents relating to house/land or other immovable property or birth registration certificate or ration card or school records may be furnished)
8. If the applicant has been issued a community certificate in the past by any authority, a copy of such certificate should be furnished:
9. Community for which certificate is claimed (including the sub-Caste).
10. (a) Caste (including sub-Caste) of the father.
(b)
Caste (including sub-Caste) of the mother.
11. Religion professed by the applicant.
12. (a) Religion professed by the father of the applicant.
(b)
Religion professed by the mother of the applicant.
13. Whether the applicant is
(a)
a natural born son/daughter of his/her parents.
Or
(b)
adopted son/daughter of his/her parents.

Declaration

I/We declare that the information furnished by me/us in the application is true and correct, and the documents appended thereto are genuine and the contents of the documents are true and correct and that if these are found to be untrue and incorrect. I/We will be liable for prosecution for furnishing false and incorrect information/documents under Section 10 of the Act No. 16 of 1993.

Station:

Dated:

Signature of applicant

Signature of the Parent/Guardian

Acknowledgment Slip

Received an application for issue of Community, Nativity and Date of Birth Certificate relating to Scheduled Caste/Backward Class in Form II from (name of the applicant/parent/guardian) belonging to village/town Mandal, District on (date).

Name of the Office,

Date:

Signature of the Officer authorised by the Competent Authority

(Name in capital letters) and designation (affix seal)

Form III

Serial No.

S.C.

District Code

S.T.

Emblem

Mandal Code

B.C.

Village Code

Certificate No.

Community, Nativity and Date of Birth Certificate

(1)

This is to certify that Sri/Smt/Kum.....Son/daughter of Sri of Village/Town Mandal District of the State of Andhra Pradesh [belongs to (sub-caste)... (group).... community which is recognised as S.C./S.T./B.C. under:]

[Substituted by G.O.Ms.No. 30 SW (CV.1) dated 3-4-2000.]

The Constitution (Scheduled Castes) Order, 1950

The Constitution (Scheduled Tribes) Order, 1950

G.O.Ms.No. 1793, Education, dated 25-9-1970 as amended from time to time (BCs) S.Cs., S.Ts. list (modification) Order, 1956, S.Cs and S.Ts (Amendment) Act, 1976.

(2)

[It is certified that Sri/Smt/Kum is a native of (place of birth) Village/Town Mandal District of Andhra Pradesh.]

[Substituted by G.O.Ms.No. 67, dated 3-7-1999 for Sl.No. 2 and 3.]

(3)

□

[Sl.No. 4 renumbered as 3 by G.O. Ms. No. 67, dated 3-7-1999.]

It is certified that the date of birth of Sri/Smt/Kum is DayMonth Year (in words) as per the declaration given by his/her father/mother/guardian as entered in the school records where he/she studied.

Signature:.....

Date:.....

Name in Capital Letters:.....

Designation:.....

(Seal)

Explanatory Note. - While mentioning the community, the Competent Authority must mention the sub-caste (in case of Scheduled Castes) and sub-tribe or sub-group (in case of Scheduled Tribes) as listed out in the S.Cs., and S.Ts. (Amendment) Act, 1976.

Form - IV

Notice to the Applicant

To

Sri/Smt/Kum Village Mandal District, whereas an application has been made by (Name of the certificate seeker) S/o, D/o, W/o (Name of the father/husband) for the issue of the Community, Nativity and Date of Birth Certificate under Section 3(1)/Section 3(2) of the AP (Scheduled Castes, Scheduled Tribes and BCs) Regulation of Issue of Community Certificates Act, 1993. Notice is hereby given that an enquiry will be made about the community claim of the above mentioned applicant by the undersigned at ... (time) on ... (date) of ... (month) 19 (year) at ... (place). He/She shall appear without fail at the said place on the said date and said time to substantiate his or her community claim, with oral and documentary evidence, failing which the Competent Authority will confirm or reject the Community claim of the applicant based on the documents/evidence furnished by the applicant in Form I/11 to the Competent Authority and the material/evidence gathered by the Competent Authority in this case. He/She may bring his/her parents to assist him/her in the enquiry.

Place:

Dated:

Signature and designation of Competent Authority.

(Seal)

Form - V

To

Sri/Smt/Kum ... Village Mandal ... District, Whereas a reference has been received by the Scrutiny Committee from the Competent Authority (specify the authority) regarding doubts about your community claim that you belong to SC/ST/BC Community. The Committee now therefore directs you to attend the enquiry regarding your community claim on (date) at (time) at ... (place) without fail. You are required to furnish all the documentary evidence in support of your community claim on the said date failing which the Scrutiny Committee will finalise its recommendations based on the material/documents/evidence made available to the Committee by the Competent Authority. You may bring your parents/guardian to assist you in the enquiry.

Date:

Place:

Chairman of the Scrutiny Committee

(Joint Collector)

(Seal)

Form - VI

To

Sri/Smt/Kum ... Village Mandal ... District, Whereas a complaint has been received by this Office alleging that you have obtained ST/SC/BC Community, Nativity and Date of Birth Certificate from (specify the authority who issued it) fraudulently, and whereas I have reason to believe that you obtained ST/SC/BC Certificate for yourself/for your son/daughter fraudulently even though in reality you do not belong to any Scheduled Tribe/SC/BC.

Now, therefore, you are hereby directed to attend enquiry regarding your community claim on ... (date) at ... (time) at ... (place) without fail. You are required to furnish all the documentary evidence in support of your community claim on the said date failing which the Scrutiny Committee will finalise its recommendations based on the material/documents/evidence made available to the committee by the District Collector. You may bring your parents/guardian to assist you in the enquiry.

Date:

Place:

Chairman of the Scrutiny Committee

(Joint Collector)

(Seal)

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Translation